

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

4. MICKEY DE MARTINI V. JESSICA THOMAS

26FL0003

On January 2, 2026, Petitioner filed a Request for Order (RFO) seeking to establish paternity, set aside the Voluntary Declaration of Paternity (VDOP), birth certificate amendment, and visitation orders. Concurrently therewith he filed a Request for Hearing and Application to Cancel (Set Aside) Voluntary Declaration of Parentage or Paternity. On March 6th, Respondent filed an RFO seeking to quash the request to set aside the VDOP and for sanctions. Hearing on both RFOs was held on June 11th at which time the request to set aside the VDOP was denied and the issue of sanctions was continued to the present date. The parties were ordered to file and serve updated Income and Expense Declarations no later than 10 days prior to the hearing.

Neither party has filed an updated Income and Expense Declaration since the June hearing date. As such, the request for sanctions is denied.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: THE REQUEST FOR SANCTIONS IS DENIED. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.